

ORDER SHEET
IN THE LAHORE HIGH COURT
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

W.P.No.10026/2018

Mohsin Arif, etc.

versus

Secretary to Govt. of Punjab, etc.

<i>Sr. No. of order/ Proceedings</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of Parties' counsel, where necessary</i>
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29.06.2018	Mr. Allah Bakhsh Khan Kulachi, Advocate for petitioners. Mr. Muhammad Aurangzeb Khan, Assistant Advocate General, Punjab.
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Through this constitutional petition, the petitioners, who are contract employees of the Population Welfare department, have called in question order dated 22.06.2018 passed by the Project Co-ordination Officer/ Deputy Secretary (Technical), Population Welfare Department, Government of the Punjab, Lahore whereby the said respondent No.2 conveyed to the Incharge Family Health Clinics, DHQ Hospital, D.G. Khan that the contracts of employees recruited under the project will stand expired on 30.06.2018 as per terms of their contracts, with direction to timely inform the concerned accordingly.

2. The petitioners are contract employees of the respondent-Department working in the project of Adolescent Reproductive Health Education Cells in family health clinics attached with 09 teaching hospitals. Petitioner No.1 was appointed as Naib Qasid whereas petitioners No.2 and 3 were appointed as computer operators in BS-14 whereafter they claim to have been diligently discharging their duties and claim to be entitled to continuation of their services beyond the terms of their contractual employment expiring on 30.06.2018.

However, it is claimed that the respondent-Department has wrongly terminated their contract in violation of terms of their employment contracts wherein condition No.19 provides for one month notice by either side for termination of contract or payment of one month salary in reply thereof.

3. From the perusal of the appointment letter issued in favour of petitioners, it is observed that petitioner No.1 was appointed for the period w.e.f. July 2016 to June, 2018 and the tenure of the contract initially was for one year which could be extended till June 2018 whereas the contracts of petitioners No.2 and 3 provided that the said contracts shall be up to 30th of June, 2018 from the date of joining which may be renewed/extended further by the Appointing Authority on the basis of satisfactory performance evaluation report in case of extension in life of the said Project. Through the impugned order dated 22.06.2018, the Project Co-ordination Officer/Deputy Secretary (Technical), Population Welfare Department, Lahore/ respondent No.2 conveyed to Incharge Family Health Clinics, DHQ Hospital, D.G. Khan that the contract of the employees recruited under the project will be expired on 30.06.2018 as per the terms of their contracts and he was directed to timely convey the order to the concerned accordingly. This was not order terminating the contract of the petitioners rather intimation was sent to the concerned Incharges Family Health Clinics, DHQ Hospital to the effect that the contracts of the employees have expired and the concerned be informed accordingly. Through this order, the respondents have neither prematurely terminated the contract of the petitioners nor imposed any stigma on them for not extending their contracts any further. Hence, they were not entitled to one month notice for termination of contract.

4. In fact, the petitioners are seeking extension of tenure of their contracts in the garb of challenging the order dated 22.06.2018 by claiming, the same to be premature termination of contracts. A contract employee cannot claim extension of the service contract as a right and it is the prerogative of the concerned authorities to decide the matter of continuing the employee in service or dispensing with the same in accordance with needs of the employer. Reliance may be placed on Mubashir Majeed v. Province of Punjab and 3 others (2017 PLC (CS) Lahore 940), wherein the Hon'ble Division Bench of this Court has held that the contractual employees cannot claim extension of the contract as a matter of right rather it was the prerogative of the competent authority either to dispense with services of such employee or continue with the same by extending the contract. Similarly, in the case titled Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others (2017 PLC (CS) Lahore 488), the Hon'ble Division Bench of this Court has held that the employee, after accepting terms and conditions of his contractual employment had submitted his joining report and as per terms of the contract the service of such employee could be terminated without assigning any reason, and the employee had no right to claim extension in his contract period as a vested right. Moreover, in the case titled Azhar Hayat v. Chairman Karachi Port Trust and others (2017 PLC (CS) Karachi 632), it was held that the petitioner had been appointed on contract basis for a specific term which he had completed, therefore, no vested right could be claimed by him for extension of contract keeping in view of the terms of his contractual engagement.

5. The order dated 22.6.2018 seems to be an intimation only conveying that the tenure of the contract

of the project employees had expired and was not being extended any further. Conveying to any employee that his tenure of contractual employment has expired, unless the same is factually incorrect, neither is an adverse order nor does it provide any cause of action to the said employee (petitioners) to challenge the same as the said contracts were to expire in any case on 30.06.2018, even if the expiry of contract had been conveyed to the concerned quarters through the said order or not. Even otherwise, the employees (petitioners) were not governed by any statutory rules of service and at the most principle of Master and Servant would be applicable to their case, which does not entitle the petitioners to file the constitutional petition.

6. In the given circumstances, no ground to interfere in order dated 22.06.2018 passed by the respondent no. 2 is made out whereby the said impugned order could be declared to be passed without lawful authority and is of no legal effect, therefore, the instant petition at this stage is not maintainable which is **dismissed** accordingly.

(MUZAMIL AKHTAR SHABIR)
JUDGE